

Merits hearing transcript — volume 1

September 17, 2024 session opens

The immigration court convenes at 9:02 a.m. in proceeding SYN-EOIR-24-RM-0113.

A.R.M. appears through retained counsel. DHS appears through an institutional trial attorney. Interpreter K-27 appears remotely and confirms an unobstructed audio connection. The judge states that removability has been conceded and that the only application is protection under the Convention Against Torture.

The judge identifies the burden and explains that testimony, exhibits, and objections will be received before findings are made. No party asks for a closed hearing. The initials-only protocol continues. Counsel confirm that the hearing may extend to a second volume and that all exhibit rulings must be stated aloud for the clerk's receipt.

Interpretation and preliminary stipulations

Interpreter K-27 is sworn to translate completely between English and Kalyrian and to flag any term without a direct equivalent. A.R.M. states through the interpreter that the connection is clear. Counsel agree that dates and exhibit numbers may be repeated in English to prevent a transcription error.

The parties stipulate for this proceeding that A.R.M. worked as a municipal procurement-records clerk, left Kalyra on August 4, 2023, entered the United States four days later, and timely filed the CAT application. DHS does not stipulate that detention, abuse, threats, official awareness, or future harm occurred. The judge reserves credibility, weight, and the legal effect of the evidence.

Exhibit receipt and ruling on P-7

The clerk identifies A.R.M.'s eighteen-page sworn declaration, lodged April 12, 2024 as Agency Exhibit P-7. The judge asks DHS to state every objection. DHS answers that it has no authenticity objection, no timeliness objection, and no objection to admission; it reserves cross-examination and weight arguments. A.R.M.'s counsel confirms that the offered copy matches the lodged copy.

The judge admits P-7 into evidence. The clerk states for the transcript: “P-7, eighteen pages, lodged April 12, admitted September 17.” The judge directs that this ruling appear both in the hearing transcript and exhibit receipt. The ruling does not deem every statement true; it places the declaration in the agency evidence considered with the testimony.

A.R.M. sworn and background established

A.R.M. is sworn and confirms the use of initials. Counsel asks about education and municipal work. A.R.M. completed a two-year records-administration course and began work in the Orin Vale procurement office in 2019. Duties included indexing vendor invoices, preserving revision history, and routing packages for threshold review. A.R.M. did not approve contracts or decide whether a vendor violated law.

A.R.M. explains that a records clerk could see the original entry, later corrections, user code, and approval path. Copies were permitted for internal compliance review. The job provided no security authority and no access to national intelligence systems.

Discovery of divided invoice entries

Counsel displays the two authenticated register versions. A.R.M. explains that six Harbor League invoices, NQL-3101 through NQL-3106, each fell below the 25,000-unit secondary-review threshold and totaled 137,400 units. The first version grouped all six under maintenance cycle NQ-APR-A; the corrected version removed the grouping and labeled each an urgent standalone repair. On April 18, 2023, A.R.M. copied both visible versions to preserve that sequence.

A.R.M. does not claim expertise in procurement law and cannot say why each invoice was divided. The concern was preservation: the change history identified different approval routes and might be overwritten in the ordinary archive. A.R.M. stored the copies in a compliance folder and did not publish them or seek payment.

Report to Nadia Pel

On May 2, A.R.M. met Nadia Pel, then a municipal compliance officer. A.R.M. showed the two ledger versions and asked how to preserve the audit trail. Pel said she would check the routing fields and advised A.R.M. not to confront a vendor. A.R.M. left a duplicate set with Pel and retained one set for the complaint file.

Pel did not promise that fraud had occurred or that an investigation would result. A.R.M. recalls Pel recognizing one Harbor League contact number from municipal dispatch records. The source of that recognition and the registers' format are addressed in Pel's own testimony rather than adopted as A.R.M.'s expertise.

First day of detention

A.R.M. testifies that Unit Four officers arrived at the records annex on May 19. Two wore municipal security markings; one displayed a Unit Four credential. They asked where the copied ledgers were. A.R.M. was taken in an unmarked vehicle to a storage compound and placed in a room with a metal door and overhead machinery noise. No custody receipt or charge was provided.

During questioning, an officer placed pressure on A.R.M.'s wrists and struck the left side of the ribs after A.R.M. denied sending the copies outside the city. A.R.M. describes fear, pain, and confusion but does not claim to remember every question in exact order. Water was provided; ordinary sleep and contact with family were not.

Second night and demands for records

Questioning resumed the next day. Officers named the maintenance cycle and asked whether Nadia Pel had a copy. One speaker said Harbor League kept the port running and that clerks should not create security problems. A.R.M. was made to stand for extended periods and was struck on the thigh after requesting a lawyer. The testimony identifies no medical emergency during custody.

A.R.M. states that the officers wanted the copied versions, the names of anyone who had seen them, and a promise not to file a complaint. The combination of official credentials, the place of detention, and knowledge of internal ledger details caused A.R.M. to understand the questioners as Unit Four personnel rather than private messengers.

Release and observable condition

On May 21, A.R.M. was released near a municipal transit stop. An officer warned that a complaint would be routed back to the regional command. A.R.M. walked to S.M.'s residence. S.M. observed wrist discoloration, right-ankle swelling, limited left-shoulder movement, and guarded breathing. The North Bell clinic registered A.R.M. that afternoon at 14:20.

A.R.M. did not report to police immediately because the speakers had identified themselves with a municipal unit and appeared to know family information. The delay is not offered as medical proof. The clinic notation and S.M.'s testimony separately document what was observed and when.

Clinic visit and complaint filing

The clinic worker recorded the conditions shown in the translated notation and advised follow-up for worsening symptoms. A.R.M. gave only a short account because the clinic intake area was open to other patients. No officer was named in the note. A.R.M. later prepared a complaint with S.M. and submitted it to the Office of Civic Integrity on June 7.

The receipt identifies complaint OCI - 23 - 441, accepted June 7 under initial route IC - 2. A.R.M. expected an outside review because the complaint named Unit Four. The audit links it on June 9 to CIV - 23 - 184 through ARM - RX - 14, changes destination on June 10 to RC - 4, Unit Four regional command, and reports “regional response pending” on June 30. No independent interviewer contacted A.R.M. or S.M. These facts come from the receipt and routing object, not unseen files.

July threats to the household

On July 11, two people approached A.R.M. and S.M. outside the family residence. One referred to the copied book and split orders; the other said the household would be easier to find if A.R.M. left Orin Vale. A July 13 message said the North Quay Lamps file remained open. A.R.M. did not recognize the speakers as Unit Four officers.

The reference to nonpublic ledger details led A.R.M. to associate them with Harbor League contacts. That is an inference, not direct identification. The translated messages preserve the wording, and S.M. supplies an independent account of the encounter. No testimony claims that every Harbor League member participated.

Departure from Kalyra

A.R.M. left Kalyra on August 4 using a valid passport and ordinary departure control. No officer stopped the departure. A.R.M. testifies that the ability to leave reduced immediate danger but did not erase concern about what might happen on return, when entry information would identify the traveler and intended region.

A.R.M. stayed briefly with relatives before traveling and did not attempt long-term relocation inside Kalyra. The decision was influenced by the complaint routing, household threats, and access to registry data. A.R.M. acknowledges having no direct proof of a current watch flag.

Feared harm from Unit Four

Asked what is feared now, A.R.M. first identifies another unregistered detention by Unit Four. The officers in 2023 demanded the ledger copies and names of collaborators. Those materials were never returned to the office, and the complaint itself supplied a reason to view A.R.M. as disloyal. A.R.M. believes questioning would be more severe after an international departure.

Counsel asks for facts rather than a percentage. A.R.M. identifies the prior encounter, knowledge of internal data, the regional routing code, and family contacts. A.R.M. does not know whether the same officers remain assigned or whether a formal case is open.

Feared harm from Harbor League actors

A.R.M. next describes concern about contractor messengers who knew the ledger subject and household location. Harbor League entities continued receiving municipal work according to the country materials. A.R.M. fears those actors could locate a workplace or residence and share information with Unit Four.

The testimony does not claim that contractors possess independent detention authority. The feared path involves coordination: contractor leads, official data access, and a security unit able to detain. Counsel confirms that overlapping steps should not be counted as separate complete risks.

Feared identification through the registry

A.R.M. learned through municipal work that household and employment fields could be queried by regional liaisons. The country report describes a return-notification pathway. A.R.M. has not seen a personal registry flag and does not claim a current database entry. The fear arises from the system's capacity and the prior officers' knowledge of family details.

On entry, A.R.M. expects to use genuine documents and provide accurate information. The asserted chain is that entry data reach a regional liaison, which can alert Unit Four or expose an address to connected contractors. The judge notes that the expert will address system operation and that A.R.M.'s testimony establishes only personal knowledge and concern.

Internal relocation testimony

A.R.M. knows people may live in other Kalyrian provinces without formal permission. A move could avoid some Orin Vale acquaintances. It would not necessarily avoid a central entry record, employment registration, or household-link query. A.R.M. has no close family outside Merrow and would need registered work to support ordinary housing.

DHS asks whether anonymous cash lodging is possible. A.R.M. agrees it may be possible temporarily but states that avoiding all services indefinitely is not a stable life plan. The judge reserves the legal relevance of relocation and asks both parties to distinguish feasibility from certainty of discovery.

Medical and symptom evidence

A.R.M. describes the clinic visit, current sleep disturbance, startle response, and wrist discoloration. Counsel does not ask A.R.M. for a diagnosis. The medical evaluation is offered for consistency and limitations. A.R.M. acknowledges maintaining daily activities and assisting with the case despite symptoms.

The judge confirms that the testimony is not being used to identify a perpetrator through a scar. The relevant personal evidence is the reported experience and observed aftermath, evaluated with the clinic note, family testimony, and clinician's conditional conclusions.

Corroboration and unavailable evidence

A.R.M. identifies S.M.'s declaration, the family log, Pel's statement, the complaint receipt, and the ledger versions as available corroboration. No video of detention, custody register, or signed officer acknowledgment exists. A.R.M. asked counsel to seek an external-review file, but the available extract ended June 30 with "regional response pending" at RC - 4.

The absence of a custody record is consistent with A.R.M.'s account of an unregistered site but is not independently decisive. A.R.M. states which facts depend solely on memory and does not attribute any material outside the exhibits tendered at this hearing to the agency evidence.

Cross-examination on copied records

DHS establishes that A.R.M. copied municipal materials without a written instruction from a supervisor. A.R.M. answers that internal compliance practice allowed preservation of audit trails and that the copies were shown only to Pel and retained for a complaint. DHS suggests the ledger change may have been an ordinary correction. A.R.M. agrees that the register alone does not prove fraud.

DHS also notes that no Harbor League name appears in the threat sender label. A.R.M. agrees. The association rests on the message content, vendor details, contact overlap, and timing. The judge states that the concessions go to weight and do not remove the exhibits from evidence.

Cross-examination on reporting history

DHS asks why A.R.M. did not use the provincial inspector hotline after the Civic Integrity route failed. A.R.M. did not know whether the hotline was independent and feared that another report would reveal the household location. The formal hotline existed; A.R.M. did not test it.

DHS introduces the national anti-torture prohibition and discipline totals. A.R.M. acknowledges the written safeguards and cannot identify every enforcement action. A.R.M. maintains that the personal complaint was sent to the implicated regional command and produced no independent interview. Both facts remain in the testimony.

Cross-examination on detention details

DHS explores the lack of an exact address for the storage compound and differences in the order of questions. A.R.M. recalls a twenty-minute drive, machinery noise, and the metal door but could not see a street sign. The sequence of two questions differs slightly from the declaration; the demand for ledgers and Pel's identity remains consistent.

DHS confirms that the clinic registered A.R.M. on May 21 at 14:20, after release that morning, and recorded the right ankle and left shoulder. The note does not name Unit Four. A.R.M. agrees. The judge directs that the transcript preserve the evidentiary limit rather than infer causation from the clinic notation alone.

Cross-examination on current conditions

DHS asks about lawful departure, the passage of time, formal prohibitions, and possible relocation. A.R.M. agrees that no official blocked departure and that no direct threat was received after leaving Kalyra before the agency hearing. Family messages reported continuing inquiries, but A.R.M. did not personally witness them.

A.R.M. also agrees there is no proof of a present registry flag. The response is that the prior detention, complaint route, contractor access, and registry capacity should be evaluated together. The judge notes that expert testimony will address the institutional propositions.

Redirect on connected risk pathways

On redirect, counsel asks whether the feared sources operate separately. A.R.M. answers that a contractor cannot use the entry registry alone and a registry clerk does not perform detention; the concern is the chain connecting them to Unit Four. The earlier threat used ledger details, officers knew about Pel, and the complaint returned to a regional command.

A.R.M. does not add percentages or claim certainty. Counsel confirms that the same potential encounter should not be counted more than once merely because several actors enable it. DHS's concessions and alternative explanations remain for the judge.

Volume-one adjournment and exhibit status

The judge completes A.R.M.'s testimony at 4:18 p.m. and states that cross-examination may be reopened only for newly identified impeachment material. The clerk confirms admission of P-1 through P-9 subject to the rulings stated in the transcript. That range includes the P-4 messages and P-5 complaint-routing materials. No objection remains to P-7's authenticity, timeliness, or admission.

The next session will hear S.M., Nadia Pel, Ilyan Varo, and DHS's institutional witness. The judge directs the clerk to preserve both transcript volumes and the exhibit receipt. The hearing recesses without findings or a ruling on CAT protection.